

22STCV08889 22STCV08889

County: los-angeles

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Case Number: 22STCV08889 Hearing Date: July 15, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: July 15, 2026

CASE NUMBER: 22STCV08889

CASE NAME: Lee Donald Taicher v. Aroma Taicher, et al.

MOVING PARTY: Defendant Linh Huong Ton

OPPOSING PARTY: Plaintiff Lee Donald Taicher

PROCEEDING: motion to quash service of summons

RULING

SUMMARY: Defendant's Motion to

Quash is denied. Defendant is ordered to

file an Answer to the Complaint within 10 days.

The Court continues the Case Management Conference to, and issues and

sets an Order to Show Cause re filing of Answer or Default of Defendant for,

_____, 2026, at 8:30AM.

Background

In this

fraud and financial elder abuse action, Plaintiff Lee Donald Taicher

("Plaintiff") alleges the following, among other things. After Plaintiff met

Defendant Aroma Taicher aka Huong Thi Thanh Nguyen in Vietnam, the defendant

misled him into believing that she loved him to induce him to help her immigrate to the United States and marry her. However, after marriage, the defendant ignored and mistreated him except when she wanted his money to buy expensive things. The defendant also took advantage of his desire for love, affection, and a wholesome family by convincing him to give \$500,000 to the defendant's daughter, named defendant Linh Huong Ton, so that the latter could obtain an EB-5 investor visa to come to the United States and give birth to her baby here, claiming that all four (including the daughter's baby) could live together as a family in the United States. However, the defendants failed to keep their promises and subsequently used his money to secretly buy a house in Florida, where they intend to move.

On

April 26, 2022, Plaintiff filed the operative First Amended Complaint ("FAC"), alleging the following causes of action: (1) Fraud-Intentional Misrepresentation (against all defendants), (2) Fraud-False Promise (against all defendants), (3) Intentional Infliction of Emotional Distress (against all defendants), (4) Negligence (against all defendants), (5) Breach of Fiduciary Duty (against all defendants), (6) Financial Abuse of an Elder (against all defendants), and (7) Breach of Promissory Note (only against Aroma Taicher).

On

April 14, 2022, Plaintiff filed Proof of Service of Summons, stating that on April 14, 2022, Defendant Linh Huong Ton ("Defendant") was served through substituted service at a West Hollywood, California address.

On

November 21, 2022, Plaintiff filed an application for an order allowing Plaintiff to serve Defendant Linh Huong Ton ("Defendant") by publication.

On

December 12, 2022, the Court denied the application for publication.

On

January 31, 2023, Plaintiff filed a Proof of Service of Summons, stating that Defendant was personally served with copies of the Summons and Complaint at a Florida address.

On May

27, 2023, Defendant filed a motion to quash service of the summons, arguing that she has never been a resident of California. However, that motion was never called for hearing in this case or the related cases (i.e., family law case 21STFL13780 and probate case 22STPB03579).

On July

7, 2023, Defendant's counsel of record in this case filed a substitution of attorney, withdrawing from the case. Defendant is currently self-represented.

On

April 7, 2025, Plaintiff dismissed the first through sixth causes of action as to Aroma Taicher only.

On

April 1, 2026, Defendant filed the "Amended Motion to Quash Service of Summons," and Plaintiff filed a timely opposition.

I. Legal Standard

A defendant, on or before the last day to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion to quash service of summons on the ground of lack of jurisdiction of the court over her. (Code Civ. Proc., §§ 418.10, subd. (a); 412.20, subd. (a)(3) [stating that a summons must state that a defendant has 30 days after service to file a response].)

"In the absence of a voluntary submission to the authority of the court, compliance with the statutes governing service of process is essential to establish that court's personal jurisdiction over a defendant. [Code Civ. Proc.] § 410.50." (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1439 (Dill) [footnote omitted].)

"When a defendant challenges [personal] jurisdiction by bringing a motion to quash, the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service." (Id. at pp. 1439–1440.)

"However, strict compliance is not required. In deciding

whether service was valid, the statutory provisions regarding service of process should be liberally construed to effectuate service and uphold the jurisdiction of the court if actual notice has been received by the defendant. [Citation.] Thus, substantial compliance is sufficient.” (Id. at pp. 1436-1437.)

II. Discussion

Defendant’s

amended motion to quash included only a notice of motion and her declaration; no memorandum of points and authorities was submitted. The motion argues that the Court lacks personal jurisdiction over her for two reasons.

First,

the purported substituted service on April 14, 2022, is void because Defendant vacated the California address in 2021, before the alleged service. (Notice of Motion, p. 2:11-17.)

Second,

the “Publication on January 13, 2023,” is void for failure to file the mandatory affidavit of diligence and Defendant “was a discoverable non-resident of California.” (Notice of Motion, at p. 2:7-9; see also Declaration of Linh Huong Ton, ¶ 6 [“I am informed and believed that Plaintiff obtained an Order for Publication December 2022 without filing the mandatory affidavit of diligence required by CCP § 415.50. Had Plaintiff performed a basic search of public records or a skip trace, my Florida residency would have been discoverable”].)

Defendant’s

arguments that service was inadequate are unpersuasive. Even if the 2022 substituted service were improper, Plaintiff subsequently filed a Proof of Service of Summons, on January 31, 2023, stating that Defendant was personally served on January 14, 2023, at 2536 Galliano Cir., Winter Park, FL 32792. In her Reply, Defendant did not dispute personal service. Instead, she implied that the service was improper by pointing out that the service “omitted the ADR materials required by the California Rules of Court (Exhibit B-4).” (Reply, p. 8:20-21; see Cal. Rules of Court, rule 3.221(c) [“In all general civil cases, the plaintiff must serve a copy of the ADR information package on each defendant together with the complaint”].) Defendant cited no legal authority to support her argument that failure to serve ADR information renders the Court without personal

jurisdiction where the defendant was personally served with the summons and complaint.

Moreover,

Defendant had 30 days from the personal service on January 14, 2023, to move to quash service on the ground that Plaintiff failed to serve the ADR information.

Here, Defendant did not file a motion to quash service within that period or seek a court order granting her an extension of time to April 1, 2026, to file the motion.

Defendant's

arguments that service by publication was inadequate are also unpersuasive. The only application for publication filed in this case was the November 21, 2022 application, which the Court denied. Therefore, an "Order for Publication" was never entered.

Conclusion

Defendant's

Motion to Quash is denied. Defendant is

ordered to file an Answer to the Complaint within 10 days. The Court continues the Case Management Conference to, and issues and sets an Order to Show Cause re filing of Answer or Default of Defendant for, _____, 2026, at 8:30AM.

Date: July 15, 2026 _____

William

E. Weinberger

Judge,

Los Angeles Superior Court